

Texas WIC Health and Human Services Commission

Effective April 1, 2026

Policy No. WV:11.0

WIC Vendor Reauthorization

Purpose

To describe State Agency (SA) procedures for selecting vendors for reauthorization from one WIC Vendor Agreement period to another with no break in service. A break in service occurs when a vendor quits, is disqualified, terminated and/or the Vendor Agreement expired and is not renewed.

Authority

7 CFR Section 246.12; 246.18

Policy

- I. WIC authorized vendors with a current Vendor Agreement who seek reauthorization will reapply and be evaluated for issuance of a subsequent Vendor Agreement under WIC Program procedures, policies, rules, and regulations.
- II. Prior to reauthorization, the SA will review the qualifications of all vendors to ensure that each vendor continues to meet the WIC Program's Selection Criteria, in accordance with WIC policy [WV:10.0](#). Criteria reviewed for reauthorization include, but are not limited to:
 - A. Competitive prices in accordance with WIC Policy [WV:10.0](#).
 - B. Redemption of declared Least Expensive Brands (LEB) in accordance with WIC Policy [WV:02.0](#).
 - C. Previous compliance with WIC Program procedures, policies, rules, and regulations. The vendor has satisfactorily complied with WIC EBT food instrument redemption and transaction submission procedures, policies, rules, and regulations.
 - D. Use of the WIC acronym or WIC logo. If the SA determines that the vendor failed to comply with the use of the acronym "WIC" or the

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WIC logo, as detailed in Texas WIC Policy [WV:01.0](#) Section XXI, the WIC Vendor Agreement will not be renewed.

- E. Failure to attend vendor training. The vendor agreement will not be renewed if a vendor or a vendor representative has not attended their annual on-demand training for the current fiscal year and/or a live interactive WIC vendor training within three years from the last date a vendor representative attended a live interactive WIC vendor training.
 - F. Valid Permit. All vendors must have a valid retail food operation permit or food manufacturer's permit from the applicable city, county, district, or state health authority.
- III. A history of noncompliance with WIC Program procedures, policies, rules, and regulations will be considered by the SA in determining if the vendor is eligible for a subsequent agreement.
- IV. The SA may allow a Vendors Agreement to expire and not be renewed if the vendor has a history of noncompliance with provisions in the Vendor Agreement or the WIC Program procedures, policies, rules, and/or regulations.
- A. Expiration of the Vendor Agreement is not subject to appeal.
 - B. In the event the Vendor Agreement has been allowed to expire due to previous noncompliance, a vendor's request for reauthorization will not be considered until at least six months from the expiration date of the vendor's last agreement.
- V. The SA will terminate the Vendor Agreement during its term if the vendor no longer meets vendor selection and/or limiting criteria, including but not limited to:
- A. Competitive pricing in accordance with Policy [WV:10.0](#)
 - B. LEB redemptions in accordance with WIC Policy [WV:02.0](#)

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- C. Noncompliance with the Vendor Agreement, federal/state statutes, and/or WIC Program regulations, policies, and procedures.
- VI. The SA will immediately terminate the Vendor Agreement if it determines that the vendor has provided false information in connection with its application for authorization.
- VII. Termination of the Vendor Agreement is subject to administrative review in accordance with Policy [WV:01.0](#) and Policy [WV:13.0](#). In the event the SA terminates the Vendor Agreement, the vendor's request for subsequent application will not be considered until at least six months from the date of termination.